

		Plaintiff asks for terminating, issue and evidence sanctions against Defendant for his failure to obey the Court’s March 6, 2023, and March 13, 2023, orders to provide further discovery responses. The Opposition shows that on June 20, 2023, and September 11, 2023, Defendant served supplemental responses in compliance with the Court’s discovery order. (See Exhibits 1-4 to Opposition.) The Opposition also reflects that Defendant paid the monetary sanctions required by the discovery order on or about July 3, 2023. (Declaration of Mark S. Martinez, ¶ 11; Declaration of Mohamed Omar Ramadan, ¶ 2 and Exhibit 7 thereto.) The Opposition and supporting papers thus show that Defendant has complied with his discovery obligations pursuant to the Court’s order. Further, although Defendant failed to timely obey the Court’s discovery order, the evidence does not establish that the failure was willful or that Defendant has otherwise engaged in a pattern of willful discovery abuse. Rather, the failure to timely respond was due to former counsel’s inadvertence and neglect. (Declaration of Mark S. Martinez, ¶¶ 6-7, 9.) Plaintiff submitted no reply and thus raises no argument to dispute the foregoing. Accordingly, the motion for terminating, issue and evidence sanctions is DENIED. Plaintiff also requests monetary sanctions against Defendant and his counsel for Defendant’s failure to obey the Court’s discovery order. The Court finds monetary sanctions are not warranted here as Plaintiff filed its sanctions motion without making any attempt to contact Defendant’s former counsel about the tardy responses. (Declaration of Mark S. Martinez, ¶ 8.) Although a meet and confer is not required for this motion, given Mr. Martinez’s statement that he inadvertently failed to timely serve the supplemental responses and that he would have remedied the situation had he been contacted by Plaintiff’s counsel (<i>see id.</i>), this motion could likely have been avoided had Plaintiff simply inquired from counsel about the responses prior to filing the motion. Thus, the motion for monetary sanctions is DENIED. Counsel for Defendant is to give notice of this ruling.
2	Balboa Capital Corporation vs. United Plumbing and Drain, Inc.	Defendants United Plumbing And Drain, Inc. (“United” individually) and Milivoje Balesevic’s (“Balesevic” individually; “Defendants” together) Motion to Set Aside Default and Default Judgment (“Motion”) is GRANTED. The court may relieve a party from a default or default judgment when service of a summons has not resulted in actual notice to the party. (Civ. Proc. Code § 473.5(a).) “[A] default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” (<i>Dill v. Berquist Constr. Co.</i> (1994) 24 Cal. App. 4th 1426, 1444 (“<i>Dill</i>”).) “A motion to vacate a judgment on the ground that it is void is timely if made within a reasonable time (8 Witkin, Cal.Procedure, supra, Attack on Judgment in Trial Court, § 186, pp. 587–588), which has been

determined to be any time within two years of the entry of the judgment. (*Dill, supra*, 24 Cal. App. 4th 1426, 1444.)

"[T]he policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary." (*Lieberman v. Aetna Ins. Co.* (1967) 249 Cal. App. 2d 515, 524.)

Here, it does not appear that Defendants were properly served the summons and complaint in this action by plaintiff Balboa Capital Corporation ("Plaintiff").

As to United, the corporate entity, service must be made to someone on behalf of the entity pursuant to Civ. Proc. Code § 416.10. (*Dill, supra*, 24 Cal. App. 4th at 1437.) Instead, Plaintiff allegedly substitute served one Goran Balesevic ("Goran") at his home address. There is no evidence Goran is an agent for service of process or person with authority to accept service on behalf of United, nor that Goran's home address is in any way associated with United. Even if Goran is Balesevic's son, that does not automatically make Goran an agent for United, nor Goran's addresses an appropriate service address. It also appears that Plaintiff only attempted to serve United's actual agent for service of process once and did not attempt to ascertain the agent's new address. Goran disputes that he was ever served a copy of the summons and complaint in any manner or form. (Goran Decl. ¶¶ 3-4.) As service was improper as to United and as the Motion was brought in a timely manner, the Motion must be granted as to United.

As to Balesevic, Plaintiff also allegedly substitute served Balesevic by way of Goran at Goran's home address. (Civ. Pro. Code § 415.20(b).) However, Balesevic and Goran produced declarations stating that Balesevic and Goran were not members of each other's households during 2022 (when service allegedly occurred). (Goran Decl. ¶ 2; Balesevic Decl. ¶ 9.) Additionally, Balesevic claims to have been living in Bosnia since 2018, and only makes trips to the U.S. approximately twice per year for medical treatment. (Balesevic ¶ 7.) Although these declarations are not backed by any evidence, neither is Plaintiff's opposition as most of the evidence thereto is not authenticated and/or hearsay of some sort. At this time, given the service on United was improper, the court finds the service on Balesevic to also have been improper.

Finally, Defendants have provided a copy of their proposed answer to the complaint and have expressed their intent to litigate this matter. (Garcia Decl. ¶ 9, Ex. 4.)

The Motion is granted. The court hereby orders the defaults and default judgment to be void and are therefore vacated. Defendants are ordered to file and serve their answer within five-days of the hearing.

Objections To Beyer Declaration:

		Sustained as to Nos. 1 (best evidence, hearsay, irrelevant (as to photo)); 2 (multiple hearsay); 3-4 (lacks personal knowledge, hearsay). Objections To Agbayani Declaration: Sustained as to Nos. 1-4 (lacks personal knowledge, foundation, speculation, hearsay). Defendants to give notice.
3	Cavalry SPV I, LLC v. James Bowie	The unopposed Motion to be Relieved as Counsel of Record, filed by attorneys Thomas J. Prenovost and Brian D. Cronin as to the representation of James Bowie is GRANTED. The Order will become effective upon filing of a proof of service reflecting service of the resulting Order on the client. Moving counsel is ordered to give notice of this ruling.
4	Centennial Realty Brokerage & Investment Group v. Wolfe	Plaintiff Centennial Realty Brokerage & Investment Corporation has demurred to the first amended answer of defendants Jeffrey Wolfe and Emily Wolfe, as trustees of the Jeffrey & Emily Wolfe Trust. Whereas the initial answer filed on May 18, 2023 contained a general denial and 41 affirmative defenses, the first amended answer, which was filed on May 31, 2023, contains a general denial and ten affirmative defenses. Nevertheless, plaintiff has demurred to all ten affirmative defenses. Code Civ. Proc. § 430.30 lists three grounds for demurrer to answer: (1) the answer does not state facts sufficient to constitute a defense; (2) the answer is "uncertain," which includes ambiguous, and unintelligible; and (3) when the answer pleads a contract, it cannot be ascertained whether the alleged contract is written or oral. Each ground must be in a separate paragraph and state whether it is directed to the entire answer or to specified defenses. CRC 3.1320(a). The demurrer (ROA 25) is convoluted but indicates that plaintiff is challenging the first, second, third, fourth, fifth, sixth, eighth, ninth, and tenth affirmative defenses as uncertain for various reasons, including that they do not refer to the specific causes of action to which they relate, that they are duplicative and redundant of other affirmative defenses, and that they are not properly brought against claims sounding in contract. It also indicates that plaintiff challenges the fourth, sixth, and seventh affirmative defenses as not stating sufficient facts to constitute a defense. A demurrer to an answer on the ground of uncertainty must specify in what way the answer is uncertain. See <u>Coons v. Thompson</u> (1946) 75 Cal.App.2d 687, 690. As previously mentioned, plaintiff contends that some of the affirmative defenses, particularly the first, second, third, fourth, fifth, eighth, and tenth affirmative defense are uncertain because they do not refer to the specific causes of action to which they are directed as required by Code Civ. Proc. § 431.30(g). This subdivision provides that defenses in an answer "shall be separately stated, and the several defenses shall